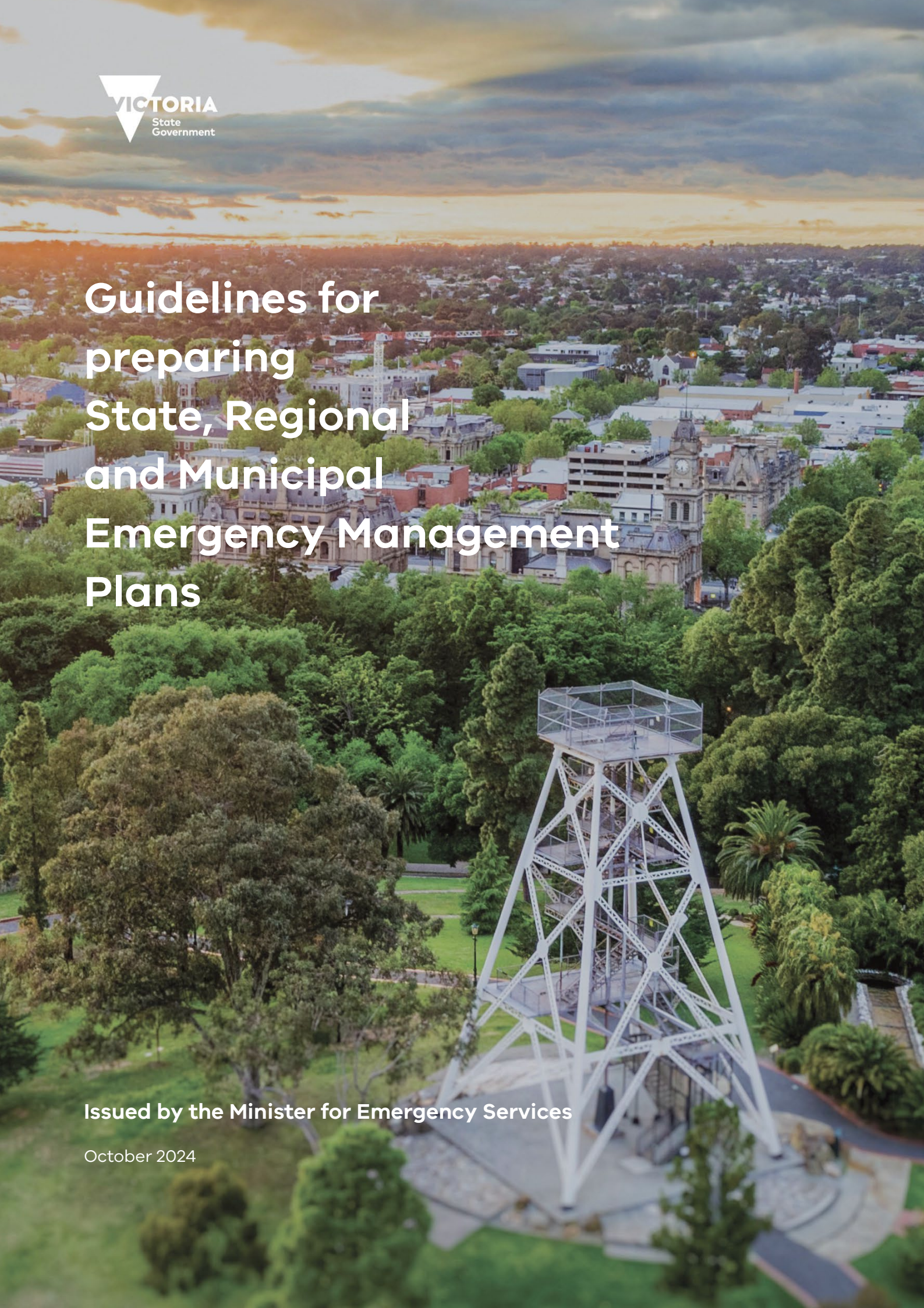


Guidelines for preparing State, Regional and Municipal Emergency Management Plans

Issued by the Minister for Emergency Services

October 2024

Acknowledgement of Country

The Honourable Jaclyn Symes, Minister for Emergency Services acknowledges Aboriginal and Torres Strait Islander people as the First Peoples and Traditional Owners and custodians of the land and waterways of Victoria and their ongoing strength in practising the world's oldest living culture.

The Victorian Government acknowledges and pays our respects to ancestors of this country, Elders, knowledge holders and leaders – past and present. We extend that respect to all Aboriginal and Torres Strait Islander peoples. We recognise that Aboriginal and Torres Strait Islander communities are steeped in culture and lore having existed within Australia continuously for some 65,000 years.

The Victorian Government is committed to working with Aboriginal and Torres Strait Islander communities to achieve a shared vision of safer and more resilient communities.



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Authority

These Guidelines are issued by the Minister for Emergency Services under section 77 of the Emergency Management Act 2013 (EM Act 2013) for emergency management planning.

Prior to issuing these Guidelines, the Minister consulted the State Crisis and Resilience Council (SCRC) in accordance with section 77(4) of the EM Act 2013.

Reviews and updates

EMV will review these Guidelines on behalf of the Minister for Emergency Services at least every 3 years, or at the request of the Minister.

The Minister will consult with SCRC in relation to any update.

Document information

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Table of Contents

1. Introduction 6
1.1 Key Definitions 7
1.2 Victoria's emergency management planning framework 7
1.3 Planning objectives 9
1.4 Additional planning tools 10
2. Types of emergency management plans 12
2.1 Principal plans 12
2.2 Subordinate plans 12
2.3 SEMP sub-plans 12
2.4 Regional and municipal level sub-plans 13
2.5 Complementary plans 14
2.6 Community Emergency Management plans 16
2.7 Relevant preparers and relevant approvers 16
2.8 Legislated Requirements 17
3. Emergency management arrangements 18
3.1 Risk assessment 18
3.2 Mitigation (including preparedness) 19
3.3 Response (including readiness and relief) 21
3.4 Recovery 21
3.5 Roles and responsibilities 22
4. Emergency management plan development 23
4.1 Planning collaboration (section 60AA(1)) 23
5. State-level emergency management plans 25
5.1 SEMP consultation requirements (section 60AF) 26
5.2 State level Statement of Assurance (section 60AG) 27
5.3 Approval of the SEMP and SEMP Sub-plans (section 60AH) 27
5.4 Non-approval of the SEMP and SEMP Sub-plans 27
5.5 Publication (section 60AI) 28
5.6 Review of the SEMP and SEMP sub-plans (section 60AN) 29
6. Regional emergency management plans 32
6.1 REMP consultation requirements (section 60AFA) 33
6.2 Regional level Statement of Assurance (section 60AG) 34

6.3 Approval of a REMP (section 60AH) 35
6.4 Non-approval of the REMP 35
6.5 Publication of a REMP (section 60AI) 35
6.6 Review of REMPs (section 60AN) 36
7. Municipal emergency management plans 38
7.1 MEMP consultation requirements (section 60AFB) 39
7.2 Municipal level Statement of Assurance (section 60AG) 41
7.3 Approval of a MEMP (section 60AH) 41
7.4 Non-approval of the MEMP 41
7.5 Publication of a MEMP (section 60AI) 42
7.6 Review of MEMPs (section 60AN) 43
8. Urgent updates of emergency management plans (section 60AM) 45
9. Resolving disputes 46
10. Appendix A – Acronyms 47



1. Introduction

These Guidelines are prepared under section 77 of the *Emergency Management Act 2013* (EM Act 2013) to:

- strengthen the alignment of planning activities with the legislation by clearly outlining the requirements for preparing an emergency management plan including content and consultation
- outline the process for preparation and approval of an emergency management plan
- provide greater cohesion across the state, regional and local levels by promoting integrated arrangements for emergency management planning
- assist with the development of plans and/or processes that are created outside the provisions in the EM Act 2013, to ensure all active plans fit seamlessly together
- help make emergency management planning consistent and effective across Victoria.

The intended audience of these Guidelines is any individuals or emergency management planning committee responsible for preparing, reviewing, or approving an emergency management plan under Part 6A of the EM Act 2013, or these Guidelines issued under the Act. This includes:

- the State Crisis and Resilience Council (SCRC) in approving the State Emergency Management Plan (SEMP) or SEMP sub-plans
- the Emergency Management Commissioner (EMC) in preparing and reviewing the SEMP and in approving Regional Emergency Management Plans (REMPs)
- each Regional Emergency Management Planning Committee (REMPC) in preparing, reviewing and assuring its REMP and in approving Municipal Emergency Management Plans (MEMPs)
- each Municipal Emergency Management Planning Committees (MEMPCs) in preparing, reviewing and assuring its MEMP
- anyone preparing a sub-plan to an emergency management plan
- agency heads consulting with agencies or responsible entities during the preparation of the relevant emergency management plan.

These Guidelines outline the requirements for each planning tier including the preparation review, assurance and approval of emergency management plans.

1.1 Key Definitions

Agencies	For the purposes of the Guidelines, agencies include government and non-government organisations, government departments, councils and volunteer organisations with a role in emergency management.
Complementary Plan	Plans prepared outside Part 6A of the EM Act 2013 or these Guidelines.
Control Agency	The control agency is the agency with the primary responsibility for responding to a specific form of emergency as listed in the SEMP (EM Act 2013 s 54).
Relevant Approver	The approver of an emergency management plan as identified in the EM Act 2013 or these Guidelines.
Relevant Preparer	The preparer of an emergency management plan as identified in the EM Act 2013 or these Guidelines.

Table 1

Key definitions of terms used throughout these Guidelines

1.2 Victoria's emergency management planning framework

The EM Act 2013 sets out how planning for emergencies is organised at the state, regional and local levels.

The aim of Victoria's emergency management planning framework is to make preparing emergency management plans efficient and effective, support different parts of the planning framework to work together smoothly, address the specific needs of communities, promote community resilience and emphasise the importance of working together on emergency management plans.

The EM Act 2013 requires the preparation of state, regional and municipal emergency management plans to ensure an integrated, coordinated, and comprehensive approach to emergency management planning. The legislation outlines what needs to be included in each emergency management plan, which must be tailored to the specific identified risks and needs of that planning area.

The EM Act 2013 recognises the importance of community emergency management planning.

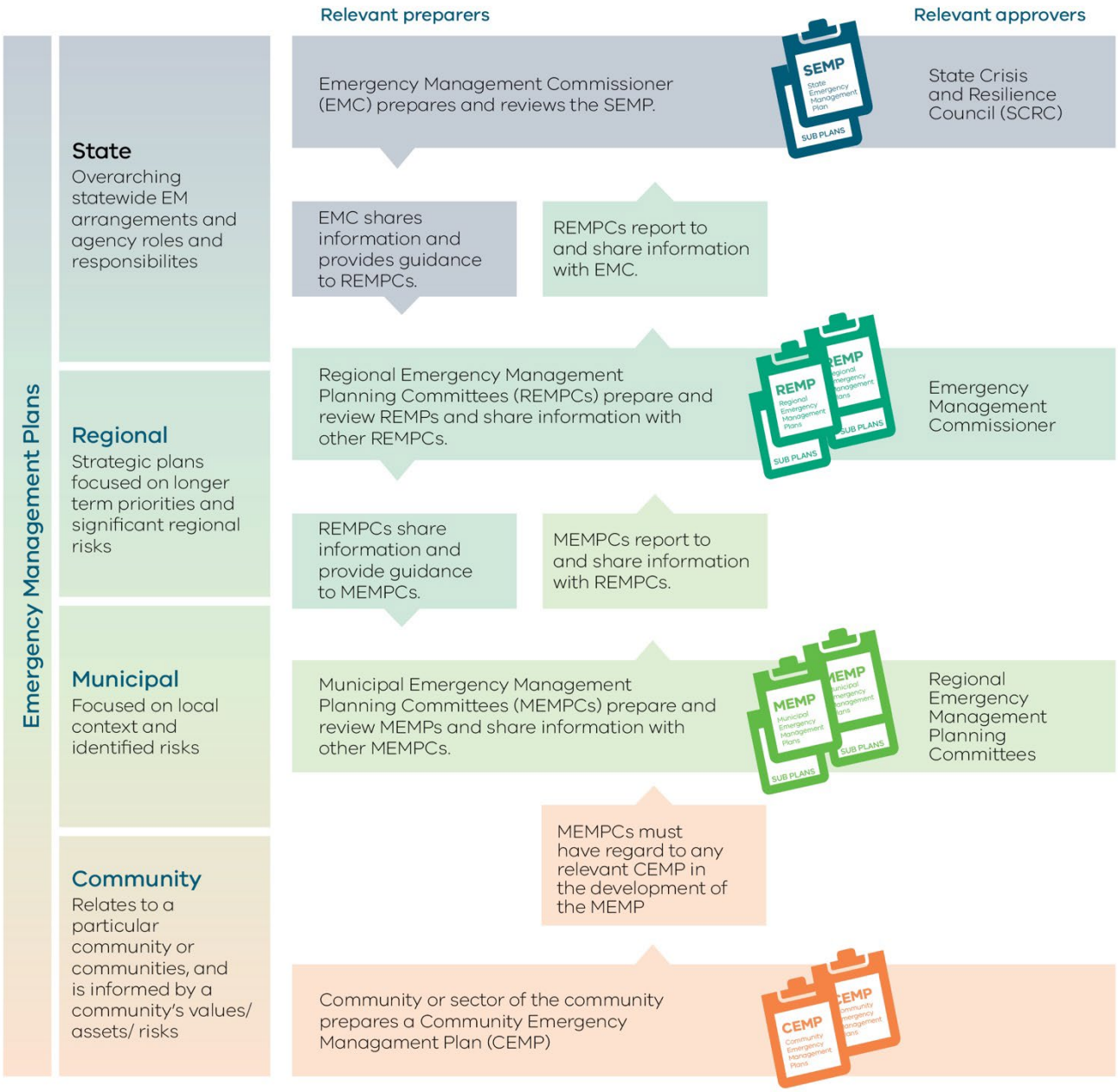


Figure 1

Framework for Emergency Management Planning

(note: community emergency management plans are not outlined in these Guidelines[1])

[1] Under s32(1)(ma) of the EM Act 2013, the EMC may issue guidelines in relation to community emergency management planning. As these Guidelines are issued by the Minister for Emergency Services, arrangements for Community Emergency Management Plans are not provided for in this document, however information on their relationship with MEMPs is included for context.

1.3 Planning objectives

Emergency management plans are prepared to meet the objectives of the EM Act 2013 for the relevant planning footprint to:

- foster a sustainable and efficient emergency management system that minimises the likelihood, effect and consequences of emergencies
- support efficient governance arrangements that:
    - clarify the roles and responsibilities of agencies
    - facilitate cooperation between agencies
    - ensure the coordination of emergency management planning within the emergency management sector
    - embed the concept the concept of shared responsibility for emergency management planning
- strengthen the "all communities - all emergencies" approach to emergency management[2]
- promote community resilience
- recognise the importance of shared responsibility for emergency management planning with a focus on people most at risk in emergencies, through collaboration amongst agencies and with communities
- adopt strengths-based (risk assessment) approaches to improve cohort-specific, agency and local, regional and state emergency management plans and arrangements
- establish integrated arrangements for emergency management planning in Victoria.

Emergency management plans should address how arrangements work together during emergencies, making sure they support integration and promote interoperability of emergency management systems. This might include sub-plans to outline specific or complex arrangements, consideration of the changing nature of emergencies or a focus on identifying cohorts most at risk in a specific emergency (for example, people with asthma may be most at risk during an epidemic thunderstorm asthma event and least at risk in another type of emergency).

[2] The "all communities-all emergencies" phrase and objective reinforces that communities are at the centre of decision-making in all of arrangements for managing emergencies, regardless of the form of emergency.

As per section 60AE, emergency management plans must contain provisions:

a. providing for the mitigation of emergencies; and

b. providing for the response to emergencies; and

c. providing for the recovery from emergencies; and

d. specifying the roles and responsibilities of agencies in relation to emergency management.

While many of the requirements outlined in the EM Act 2013 apply to all emergency planning, there are some considerations that apply specifically to each of the 3 planning tiers (state, regional, and municipal). Where this is the case, the information is called out separately in these Guidelines.

As the planning framework is made up of integrated plans and the SEMP sets the arrangements for all of Victoria, arrangements in SEMP sub-plans, REMPs and MEMPs cannot conflict with those set out in the SEMP. REMPs and MEMPs should build on the SEMP by articulating governance, risks and roles and responsibilities that are specific to each region or municipality. Preparers of REMPs and MEMPs should take care to avoid unnecessary duplication of content from the SEMP, instead referring readers to the SEMP to access relevant information where required.

1.4 Additional planning tools

The Emergency Management Planning Resource Library (Resource Library), located on the Emergency Management Victoria (EMV) website, offers additional templates, documents and contemporary resources, such as the Victorian Emergency Management Planning Toolkit for People Most at Risk, to support emergency management planning and risk assessment processes.

Emergency management planning committees are encouraged to use the mandatory Statement of Assurance templates and contemporary resources in the Resource Library to support consistency and improve integration of plans across Victoria. For example, informing, enhancing and strengthening existing emergency management risk assessment and planning processes at all levels.

Figure 2 shows the hierarchy of guidance documents available for developing emergency management plans.



Figure 2

Hierarchy of mandated and advisory resources for developing emergency management plans



2. Types of emergency management plans

2.1 Principal plans

The SEMP, REMPs and MEMPs are the **principal emergency management plans** within the Victorian emergency management planning framework. Together they form Victoria's planning framework to mitigate, plan and prepare for, respond to, and recover from emergencies. Each plan must reflect the appropriate level of emergency management for that tier.

- At the state level, the SEMP sets out the overall arrangements for emergency management in Victoria, including roles and responsibilities of agencies.
- At the regional level, the 8 REMPs outline arrangements for their region where different from the SEMP, and consider relevant MEMPs, regional issues and risks.
- At the local level, a MEMP is informed by its REMP, identified emergency risks specific to that local geographical area and considers any community emergency management plans that may be in place within their municipal district.

All principal emergency management plans are multi-agency plans prepared under Part 6A of the EM Act 2013 and must be prepared in accordance with these Guidelines. All agencies required to be members of an emergency management planning committee (as per section 54 and 59A) need to contribute to the ongoing development of these plans. As principal plans, the SEMP, REMPs and MEMPs must:

- implement an "all communities – all emergencies" approach to emergency management
- not conflict or duplicate other plans currently in force, and where relevant should identify and refer to those plans to ensure effective interoperability
- address each emergency management phase.

2.2 Subordinate plans

Whilst there may be any number of plans in existence that have an emergency management component, there are two main types of subordinate plans: sub-plans and complementary plans.

2.3 SEMP sub-plans

The EMC or an emergency management planning committee may determine that a sub-plan is necessary to manage a hazard or risk identified as having significant consequences or to detail complex/specific arrangements that are additional or differ from those contained in the principal plan.

At the state-level, the SEMP and SEMP sub-plans outline the state's emergency management arrangements to mitigate, respond to and recover from hazards and risks identified in the Emergency Risks in Victoria report.

When determining if a SEMP sub-plan is required, the proposed risk should first undergo a risk assessment using the Victorian Emergency Risk Assessment (VERA) process. Emergency risks must meet the VERA scope:

- the hazard or risk is a Class 1 or Class 2 emergencies (Class 3 are out of VERA's scope)
- the hazard or risk is defined as a major emergency
- the hazard or risk would activate the state emergency management tier.

If the emergency risk identifies catastrophic consequences or a very high-extreme overall risk rating, a SEMP sub-plan should be considered.

The EMC may also determine that a sub-plan is required to manage the residual risk remaining after risk treatments. Risks that fall outside of the above criteria may be considered at the discretion of the EMC who may determine that a sub-plan is necessary to manage a risk that is not the responsibility of a legislated control agency and where an integrated effort is required.

In addition to risk considerations, SEMP sub-plans are prepared to detail additional/special planning arrangements and activities outside the scope of the SEMP to manage a particular risk or hazard.

Specific SEMP sub-plans are prepared by the relevant Control Agency on behalf of the EMC and require the same consultation, assurance, approval and review process as the SEMP and in accordance with these Guidelines. Where multiple control agencies are identified for the risk, the relevant approver may determine that:

- a single agency will lead the development of the sub-plan on behalf of the EMC, in consultation with the other control agencies
- the control agencies jointly lead the preparation of the sub-plan.

In line with the principal emergency management plan, sub-plans should consider referencing relevant supporting arrangements at an international, national, state, or local level rather than duplicating existing arrangements.

2.4 Regional and municipal level sub-plans

Emergency management plans under the planning framework, must implement an "all communities - all emergencies" approach to emergency management and must address each emergency management phase. Relief and recovery arrangements should be outlined in the principal plan. Additional information can form an appendix to the REMP or MEMP.

If a sub-plan is in effect at the state-level, a regional or municipal sub-plan specific to that same hazard or risk should only be prepared where regionally or locally significant and the emergency management arrangements or agency roles and responsibilities differ from those outlined in the state-level plans. All sub-plans are intended to be multi-agency plans.

Where the SEMP, SEMP sub-plans, regional or municipal plans, sub-plans or relevant complementary plans (including operational plans) are not sufficient to address the local risks identified through the risk assessment process, a sub-plan may be required as determined by the Control Agency/ies or the relevant emergency management planning committee with agreement from the Control Agency/ies. Hazard-specific REMP and MEMP sub-plans should be prepared by the relevant Control Agency/ies on behalf of, and in collaboration with, the appropriate planning committee members to ensure coordination, cooperation and clarity of roles and responsibilities of agencies.

A sub-plan may seek to define more complex or specific arrangements that are additional, or differ from, those contained in the principal plan. On determining if a regional or municipal sub-plan is required, the following factors should be considered:

- the emergency risk assessment indicates the subject of the sub-plan requires attention
- the principal plan requires clarification or variation for certain circumstances
- specific emergency situations are likely to have significant consequences based on risk assessments
- there is a need to outline more complex or specific arrangements than those provided in existing current emergency management plans
- the need to manage a risk or consequence based on risk assessments that is not the responsibility of a legislated control agency and where an integrated effort is required
- the sub-plan will not create inconsistencies with or duplicate other plans in effect.

2.5 Complementary plans

For the purpose of these Guidelines, plans prepared outside part 6A of the EM Act 2013 are referred to as complementary plans.

Complementary plans are often prepared under their own specific statutory requirements, governance arrangements, and/or authorising environment, and are not subject to the consultation, approval and assurance requirements of the EM Act 2013.

Examples of complementary plans are:

- a plan outlining multi-agency arrangements for risks or hazards that do not meet the VERA criteria
- a plan prepared by a water corporation under the Water Act 1989
- a responsible entity's emergency risk management plan prepared under the critical infrastructure resilience arrangements in Part 7A of the EM Act 2013
- a plan for a specific form of emergency developed by an individual agency that does not require a coordinated multi-agency response.

Preparers of complementary plans are encouraged to consider the principles and requirements outlined in these Guidelines to promote cohesion and integration, although compliance is not mandated for complementary plans.

The distinction between the 3 types of emergency management plans is outlined in Figure 3 below.

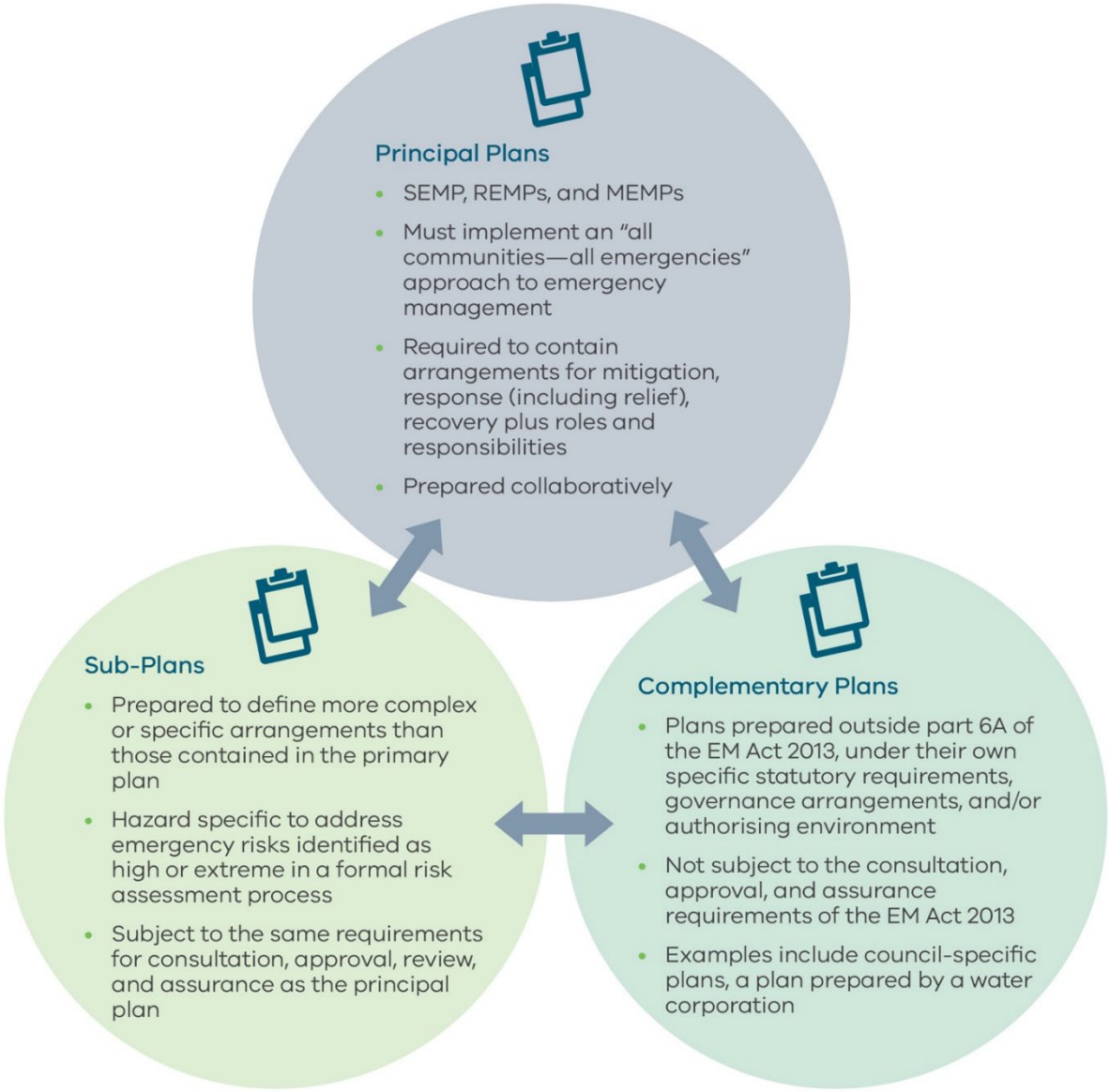


Figure 3
Distinction between the three types of emergency management plans

2.6 Community Emergency Management plans

While the Guidelines do not provide arrangements for Community Emergency Management Plans (CEMPs), CEMPs are recognised in, but not required by, the EM Act 2013 as "a plan in relation to preparing for emergencies that is prepared by the community, or a sector of the community, located within one or more municipal districts."

Under Victoria's emergency management planning framework, MEMPCs must, during the course of preparing their MEMP, have regard to any relevant CEMP that is prepared wholly or partly in relation to the relevant municipal district (section 60AFB of the EM Act 2013). In order for this to take place a MEMPC must be aware of the CEMP.

Once a CEMP is prepared, the CEMP should be provided to the relevant MEMPC/s, care of the relevant municipal council/s (who chair MEMPCs).

2.7 Relevant preparers and relevant approvers

As outlined in Table 2 below, these Guidelines refer to the roles of a relevant preparer and relevant approver specified in the EM Act 2013.

The Sections 60AC, 60AG advises that a **relevant preparer must** ensure that:

a. an emergency management plan is prepared in accordance with this Act; and

b. any relevant guidelines issued under section 77 are had regard to in the course of preparing the emergency management plan; and

c. to the extent possible, the emergency management plan does not conflict with, or duplicate, any other plans in relation to emergency management currently in force within Australia

d. they must prepare and submit to the plan's relevant approver, a Statement of Assurance having regard to these Guidelines, that outlines how the emergency management plan meets the requirements of the EM Act 2013 and the date on which the plan was last reviewed

e. they advise each Department and agency that has a role in the plan that the emergency management plan has been published.

The relevant preparers and approvers at each tier are identified below:

Emergency Management Plan	Relevant Preparer	Relevant Approver
SEMP	EMC	SCRC
SEMP Sub-Plans	Control Agency on behalf of the EMC	SCRC
REMP	REMPCs	EMC
REMP Sub-Plans (if required)	Control Agency on behalf of, and in collaboration with, the REMPC	EMC
MEMP	MEMPCs	REMPCs
MEMP Sub-Plans (if required)	Control Agency on behalf of, and in collaboration with, the MEMPC	REMPCs

Table 2

Relevant preparers and approvers of Emergency Management Plans

2.8 Legislated Requirements

All emergency management plans must:

- be prepared collaboratively, efficiently and effectively (section 60AA(1))
- be consistent with other existing in force emergency management plans and where possible not duplicate or conflict with those plans (section 60AC)
- adopt an integrated, coordinated and comprehensive approach to emergency management (sections 60AD, 60ADA and 60ADB)
- contain emergency management arrangements for mitigation, response, and recovery plus roles and responsibilities (section 60AE)
- be assured, approved and published every 3 years, or more frequently if required (sections 60AG, 60AH, and 60AI)
- be accompanied by a Statement of Assurance (comprising a checklist and certificate) – templates are available in the Resource Library.

3. Emergency management arrangements

As outlined above, all emergency management plans must contain arrangements for mitigation, response (including relief), recovery, and roles and responsibilities of agencies. The SEMP, REMPs and MEMPs, form the planning framework to mitigate, plan and prepare for, respond to, and recover from emergencies.

Regional and municipal emergency management plans and required sub-plans should refer to other published plans such as the SEMP or SEMP sub-plans rather than replicate applicable arrangements for mitigation, response (including relief), recovery, and roles and responsibilities. The REMPs and MEMPs should therefore focus on outlining differences and arrangements in place to address the risks identified in their risk registers.

3.1 Risk assessment

Victoria's emergency risk management approach aligns with the outcomes and objectives of the Sendai Framework for Disaster Risk Reduction 2015–2030 and the National Strategy for Disaster Resilience (NSDR). This approach recognises that risk management must be embedded in all EM phases and that responsibility for risk reduction must be shared across all sectors of society. The National Disaster Risk Reduction Framework sets out risk reduction priorities and guiding principles at the national, state and local levels. Emergency management planning committees are responsible for undertaking regular emergency risk assessments to understand and manage their risk profiles and to support planning.

Where a new or emerging emergency risk is identified by a participating agency or risk owner outside of the REMP or MEMP review processes, the risk owner must bring this to the attention of any impacted REMPC or MEMPC to ensure there is consistent planning and treatment performed at all levels.

There are various risk evaluation tools and mechanisms available for the identification of existing and emerging risks including the National Emergency Risk Assessment Guidelines (NERAG). Formal risk assessments must be reviewed at least every 3 years in line with the planning cycle to inform the emergency management plan

Across Victoria, emergency risk is:

- assessed at a state, regional and municipal level
- addressed within corresponding emergency management plans.

All tiers of emergency risk assessment are currently performed based on:

- ISO 31000:2018
- concepts from the NERAG.

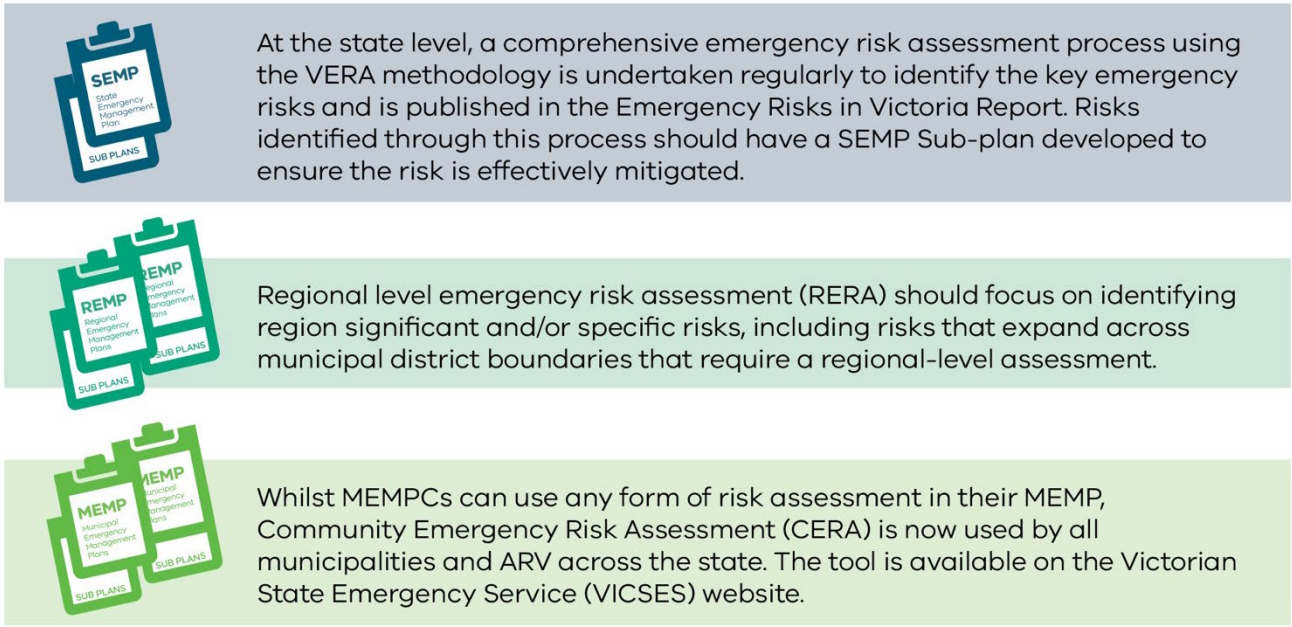


Figure 4

Risk assessment tools available to inform emergency management planning

Further information on risk identification, assessment, planning, approval and reporting and how this relates to emergency management plans can be found on the EMV website.

At the state level, the VERA methodology, risk assessments, treatment plans and outputs are living documents that require regular review. The entire VERA process should be performed for all emergency risks at least every 3 years. This review should include evaluating emerging risks, changes to prioritisation of emergency risks across Victoria and changes in emergency risks previously identified.

Risk prioritisation is critical and should be included early in the planning process to ensure the appropriate attention is given to the highest value mitigation strategies. The relevant agency/ies should advance investment prioritisation through their respective budget bid processes and use the outcomes of these processes to further inform decision making.

3.2 Mitigation (including preparedness)

Mitigation is the action taken to eliminate or reduce the incidence or severity of emergencies and minimise their effects. Actions should seek to build effective partnerships and align with the National Disaster Risk Reduction Framework. Mitigation acknowledges that resilience of critical infrastructure sectors and effective relationships with industry are key to ensuring mitigation activities outlined in emergency management plans are integrated and comprehensive.

A number of mitigation activities and arrangements are outlined in the SEMP and often exist as part of specific regulatory requirements and/or policy settings.

All emergency management plans need to include proactive mitigation strategies, activities and coordination arrangements that are intended to eliminate or reduce the incidence or severity of emergencies and minimise their effects on and consequences for communities. All agencies should consider their communities when planning to make sure local situations inform mitigation activities.

Mitigation strategies must be developed to address known and emerging risks from a consequence management perspective. The EMC and emergency management planning committees must undertake regular and comprehensive emergency risk assessments to better understand and manage the risk profile based on likelihood and consequences. Community focused, emergency risk assessments may be for a defined geographical area, be hazard specific or scenario based.

Mitigation activities should complement existing programs or contribute to new initiatives and may include, but are not limited to:

- planning and regulation, such as formulation and implementation of policy and procedures
- infrastructure projects, such as building and/ or maintenance of structural works and infrastructure
- education and awareness, including the delivery of related programs such as training, engagement and other activities to build community preparedness and resilience
- exercising plans and encouraging learning from assurance activities and national or international contemporary good practice
- communication systems, establishing robust systems for effective information dissemination
- collaboration and partnerships, fostering cooperation with various organisations
- technological innovation, such as using technology for risk assessment and monitoring
- training to prepare and equip response teams with the necessary skills and resources to handle a wide range of emergency scenarios effectively.

In the development or review of its plan, the emergency management planning committee may share recommendations with an agency or department with regard to its mitigation activities, however a committee does not have the power to direct an agency.

3.3 Response (including readiness and relief)

All emergency management plans should define the integrated and comprehensive response arrangements that apply across all communities and all emergencies including agreed escalation thresholds.

The response phase refers to the actions taken during and in the first period after an emergency to reduce the effects and consequences of the emergency on people, their livelihoods, wellbeing and property, on the environment, and to meet basic human needs. It also includes readiness activities, which are the actions taken immediately before an emergency event and increases the ability for timely response.

Relief is the provision of assistance to meet the essential needs of individuals, families and communities during and in the immediate aftermath of an emergency. Relief coordination brings together agencies, departments, councils and resources to ensure effective delivery of relief services and support community involvement in all relief activities.

3.4 Recovery

All emergency management plans should set out arrangements for recovery, which is the assisting of persons and communities affected by emergencies to achieve a proper and effective level of functioning.

This content should align with the principles, outcomes and arrangements articulated in the SEMP. This includes the use of recovery environments as a framework to plan, report, monitor and evaluate recovery. The environments are social, economic, built and natural, with Aboriginal Culture and Healing also able to be included to ensure recovery coordination and delivery aligns with Victorian Government commitments to advancing Aboriginal self-determination.

Planning for recovery is integral to emergency preparation, and mitigation actions may often be initiated as part of recovery. Recovery should provide an opportunity to improve beyond previous conditions, contributing to a more resilient community.

When an emergency occurs, recovery roles should be considered at the first available opportunity, as decisions made during response will affect recovery outcomes. These will then continue beyond when relief ceases. Recovery planning and activities will often occur alongside mitigation, response and relief activities.

Emergency management plans should recognise that the participation of agencies in recovery may occur across an extended timeframe.

Further information about how recovery is coordinated in Victoria can also be accessed from the Emergency Recovery Victoria Recovery Framework.

3.5 Roles and responsibilities

Agencies with roles or responsibilities under an emergency management plan must act in accordance with that plan (section 60AK of the EM Act 2013) and are accountable to the extent possible for meeting all resourcing requirements to do so.

The agency roles and responsibilities detailed in the SEMP should be consistent with but not necessarily limited to the legislative and administrative responsibilities of those agencies. Where roles or responsibilities outlined in the SEMP differ at a regional or local level, the relevant emergency management plan should further define requirements and obligations in a similar manner to the SEMP, to ensure the effective operation of the plan.

An emergency management planning committee may also introduce additional agencies to an emergency management plan if those agencies are relevant to the planning footprint and not addressed in the SEMP.

Emergency management plans are multi-agency plans and are not required to define command arrangements.



4.Emergency management plan development

When developing an emergency management plan, preparers must seek to align the plan with existing legislation, frameworks, procedures and contemporary resources such as the Victorian Preparedness Framework, the Community Resilience Framework for Emergency Management, the Victorian Emergency Management Planning Toolkit for People Most at Risk and the Assurance Framework for Emergency Management. The relevant preparer must ensure enough time is allowed to undertake the review of an emergency management plan, which may take six to twelve months depending on scope and complexity, to allow for the variable volume of changes required, and the following processes.

Each emergency management plan should reference any doctrine that has been considered and explain how it is integrated. Effective planning will incorporate collaboration, consultation, integration and coordination at each phase of the plan cycle.

4.1 Planning collaboration (section 60AA(1))

Collaboration is critical to developing efficient and effective emergency management plans that meet the needs of communities, industry and government across all the 3 planning levels. In this context, collaboration involves sharing information, joint decision-making, integration of complementary arrangements and a commitment to work together to achieve a common goal.

When preparing and implementing an emergency management plan, collaboration should occur in a way that:

- places the community at the centre
- makes effective use of resources
- focuses on risks, consequences, community outcomes and resilience
- considers existing capability and capacity, and future development needs
- encourages participation, as well as debate and independent thought
- represents diversity within the community
- embeds partnerships with First Peoples to acknowledge their sovereignty and wisdom and learn from their ways of knowing and being
- is respectful, inclusive and fosters trust
- seeks consensus and collective action
- uses transparent decision-making processes
- shares key learnings and information.

Collaboration arrangements are diverse in nature and may range from informal to highly structured and integrated approaches. The relevant emergency management planning committee is authorised to do all things that are necessary or convenient to the performance of its functions, however it does not have the power to direct an agency. Obtaining expert advice to inform a specific aspect of an emergency management plan is an example of how this provision may be applied. Agencies with emergency management planning responsibilities are encouraged to seek and build collaborative participation and partnerships with the community and recognise the importance of shared responsibility.

Collaborative partnerships in emergency management planning promote co-design and inclusive participation, to reflect unique local, cultural, social and/or economic needs to develop tailored and informed approaches. This ensures planning is informed by strengths-based approaches that recognise the capability and support needs of the community.

Where relevant, emergency management planning committees are required to share information with other planning committees horizontally across that tier and vertically between the EMC, REMPCs and MEMPCs. Examples of relevant information could include lessons identified from a community engagement campaign, training, exercising or response activity, or research and analysis.

Where it may be necessary to share confidential information, the committee must seek the agreement of the person or agency that owns the information. It must also ensure that the recipients of confidential information are aware of its confidential nature and undertake to maintain such confidentiality.

Preparers are encouraged to consider guidance material in the Resource Library and emergency management lessons management platform to ensure leading practices are incorporated in plans.



5. State-level emergency management plans

The development of a SEMP is required under section 60AD of the EM Act 2013 to outline state level emergency management arrangements and roles and responsibilities of agencies. State planning arrangements specific to particular emergency hazards are outlined further in SEMP sub-plans.

The EMC is the relevant preparer of the SEMP. Hazard specific SEMP sub-plans should be prepared by the relevant Control Agency on behalf of the EMC.

The SEMP and its sub-plans promote the shared responsibility approach to emergency management by recognising that building safer and more resilient communities is the shared responsibility of all Victorians, not just the emergency management sector. Individuals, communities, organisations, businesses, all levels of government and the not-for-profit sector all have some role to play in planning for, responding to and recovering from emergencies. Sharing responsibility means identifying and supporting people most at-risk before, during and after an emergency in emergency management plans.

The 21 core capabilities and the critical tasks outlined in the Victorian Preparedness Framework set the foundation for how we prepare, respond to and recover from emergencies. Agencies are guided to use this framework to assess existing and future capability requirements in consideration of the critical tasks required to achieve those targets. To ensure that roles and responsibilities are agreed, accurate and understood, consultation with agencies during the development of the emergency management plan, and its subsequent reviews, is essential. Collaboration at this time will provide clarity and reduce the potential for conflict when the plan is in operation.

It is important to note that the roles for the emergency management sector that are outlined in the SEMP are, in most cases, required by legislation or government policy. Roles outside the sector that are listed are included to demonstrate the importance of shared responsibility.

The SEMP is not an aggregation of REMPs or their sub-plans.



5.1 SEMP consultation requirements (section 60AF)

The EMC (or Control Agency in the case of SEMP sub-plans) must, at a minimum, consult with the following bodies and allow enough time for consultation with any other relevant stakeholders:

- each responder agency (Fire Rescue Victoria, Country Fire Authority, VICSES and the Secretary to the Department of Energy, Environment and Climate Action)
- each Victorian Government Department
- Victoria Police
- Ambulance Victoria
- the Municipal Association of Victoria.

In preparing the SEMP or SEMP sub-plan, the EMC or relevant preparer, may choose to consult any sector of the community and any of the REMPCs or MEMPCs, including targeted consultation with community groups considered relevant or most at-risk by the EMC or relevant preparer. This could include Traditional Owners and Aboriginal communities to ensure arrangements align with Victorian Government commitments to advancing Aboriginal self-determination. Consideration should be given to most at-risk groups, or sectors of the community that may be more heavily impacted during an emergency, by hazard or risk assessment where relevant.

The EM Act 2013 requires broad consultation and engagement to ensure that the SEMP considers and incorporates the needs of stakeholders. As such the time required to engage effectively with relevant stakeholders will vary based on the topic and complexity of the plan. Effective consultation and engagement will ensure a shared understanding of the roles, responsibilities, people, resources and systems needed for managing emergencies.

The EMC must allow enough time in the development of the SEMP to ensure that the knowledge and expertise of agencies and technical experts is considered which may include emergency risk management studies, literature or case study reviews. There is broad ownership of the SEMP, including a shared responsibility for its management, implementation and review.

In relation to the SEMP or SEMP sub-plans, the preparing agency is required to consult with any agency that has a role or responsibility in the SEMP or SEMP sub-plan, as necessary. In addition, Part 6A of the EM Act 2013 requires 'relevant departments' to consult with operators of vital critical infrastructure and responsible entities (section 74B), where it is considered appropriate.

These provisions recognise that agency heads are best placed to decide which of their portfolio agencies and stakeholders should be consulted in relation to emergency management planning.

5.2 State level Statement of Assurance (section 60AG)

The EMC, as relevant preparer of the SEMP must develop a Statement of Assurance that confirms the SEMP complies with the requirements outlined in Part 6A of the EM Act 2013 and specifies the date when the SEMP was last reviewed. Complete and accurate records to support the Statement of Assurance should be kept and provided to SCRC, as the relevant approver if required.

The Statement of Assurance assists SCRC, as the relevant approver to decide whether to approve the SEMP. For SEMP sub-plans, the statement of assurance should be completed by the relevant Control Agency who prepared the plan.

5.3 Approval of the SEMP and SEMP Sub-plans (section 60AH)

The EMC, as relevant preparer must submit the SEMP and Statement of Assurance to SCRC for approval.

Control agencies who prepare a SEMP sub-plan on behalf of the EMC must submit the SEMP sub-plan and Statement of Assurance to the SCRC for approval. Where the preparing agency is not a member of SCRC the EMC will submit the SEMP sub-plan on their behalf.

SCRC, as the relevant approver may, as soon as practicable, approve the SEMP or SEMP sub-plan if satisfied that it complies with the EM Act 2013. Where deemed necessary, SCRC may seek further information, for example evidence of the consultation that has occurred.

SCRC, as the relevant approver will manage conflicts of interest in approving the SEMP or SEMP sub-plan. For example, as members of the SCRC, the EMC and the Chief Executive EMV should not be involved in the decision to approve the SEMP or SEMP sub-plan. In making its assessment, SCRC should have regard to the resources and expertise available and recognise that planning will involve a process of continuous improvement over time.

SCRC as the approver is encouraged to advise the EMC where there are specific areas for improvement of the SEMP or SEMP sub-plan to facilitate continuous improvement throughout the next planning cycle.

The approval process is intended to ensure compliance with the requirements of the EM Act 2013. Approving the SEMP or SEMP sub-plan does not mean the approver becomes accountable for the implementation or effectiveness of the plan.

5.4 Non-approval of the SEMP and SEMP Sub-plans

If the SEMP, SEMP sub-plan and/or Statement of Assurance does not comply with the EM Act 2013, SCRC as relevant approver may decline to approve the plan. If this occurs, SCRC as the relevant approver should provide clear advice to the EMC about what is required and support efforts to achieve compliance as soon as possible and within an agreed period of not more than 12 months.

Should the preparer disagree with the decision of the approver and efforts to resolve the dispute fail, either party may escalate the issue in accordance with the dispute resolution process.

5.5 Publication (section 60AI)

The SEMP will be published on the EMV website as soon as practicable after approval, within one month from the date of SCRC approval. EMV will facilitate this process for the SEMP and SEMP sub-plans.

EMV will provide a copy of the published plan to the State Library of Victoria within 2 months of the date of publication, in accordance with the legal deposit requirements in section 49 of the *Libraries Act 1988*. For SEMP sub-plans, the preparing agency is responsible for this requirement.

The following information is sensitive and may be excluded from the published version of the SEMP or SEMP sub-plans:

- information about critical infrastructure, such as its location and criticality rating
- personal information, such as contact lists
- commercially sensitive information, such as intellectual property or trade secrets that may result in damage to a party's commercial interests
- information about illegal and high-risk activity, including those that may be subject to ongoing investigations or court processes (e.g. illegal chemical storages)
- information about the location of potential emergency relief centres.

On advice that information provided in the SEMP is sensitive and should not be published, EMV will work with the relevant stakeholders as appropriate to exclude this information from the published SEMP.

In addition to information provided by agencies, EMV should have regard to sensitivity of critical infrastructure information and information privacy principles in the *Privacy and Data Protection Act 2014*.

The SEMP and SEMP sub-plans do not come into effect until published. The EMC will notify all agencies with a role under the SEMP that is has been published and where it can be accessed. The preparer of a SEMP sub-plan is responsible for notifying stakeholders with a role in the relevant sub-plan that is has been published and where it can be accessed.

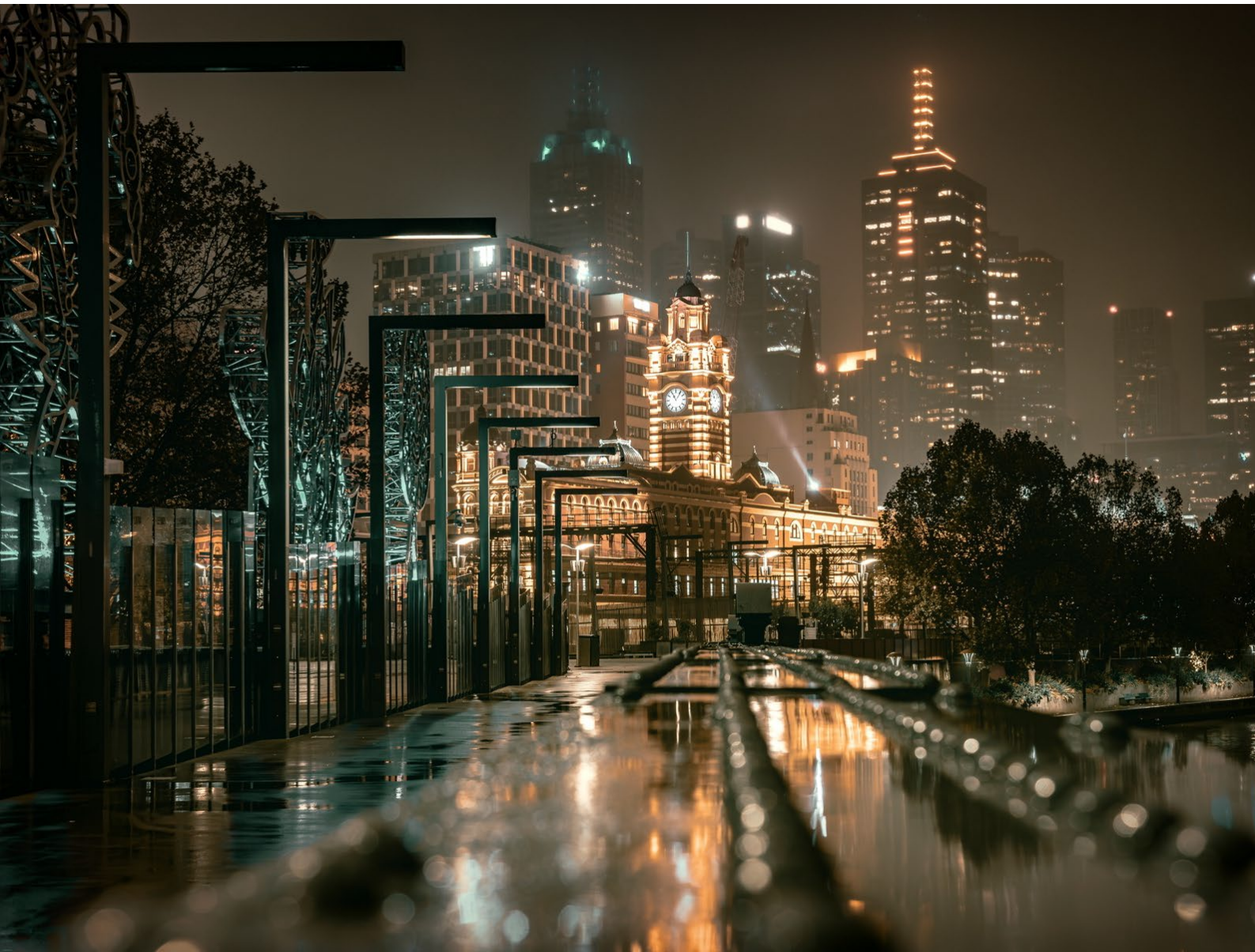
5.6 Review of the SEMP and SEMP sub-plans (section 60AN)

The SEMP and SEMP sub-plans must be reviewed at least every 3 years, or more frequently as required, to ensure it is current, integrated, coordinated and comprehensive.

The SEMP and SEMP sub-plans should consider monitoring and evaluation arrangements, including who is responsible for monitoring and evaluation. A review may be required more often where the plan has been exercised or implemented and opportunities to improve the plan are identified.

Monitoring and evaluation should occur through the life of the plan, with information disseminated to stakeholders where relevant to promote continuous improvement and ensure a learning culture that supports sharing observations and insights.

The relevant preparer should have a schedule for reviewing and approving each emergency management plan to ensure resources are available for review, assurance and approval and enough time is allowed to undertake the required consultation on the plan.



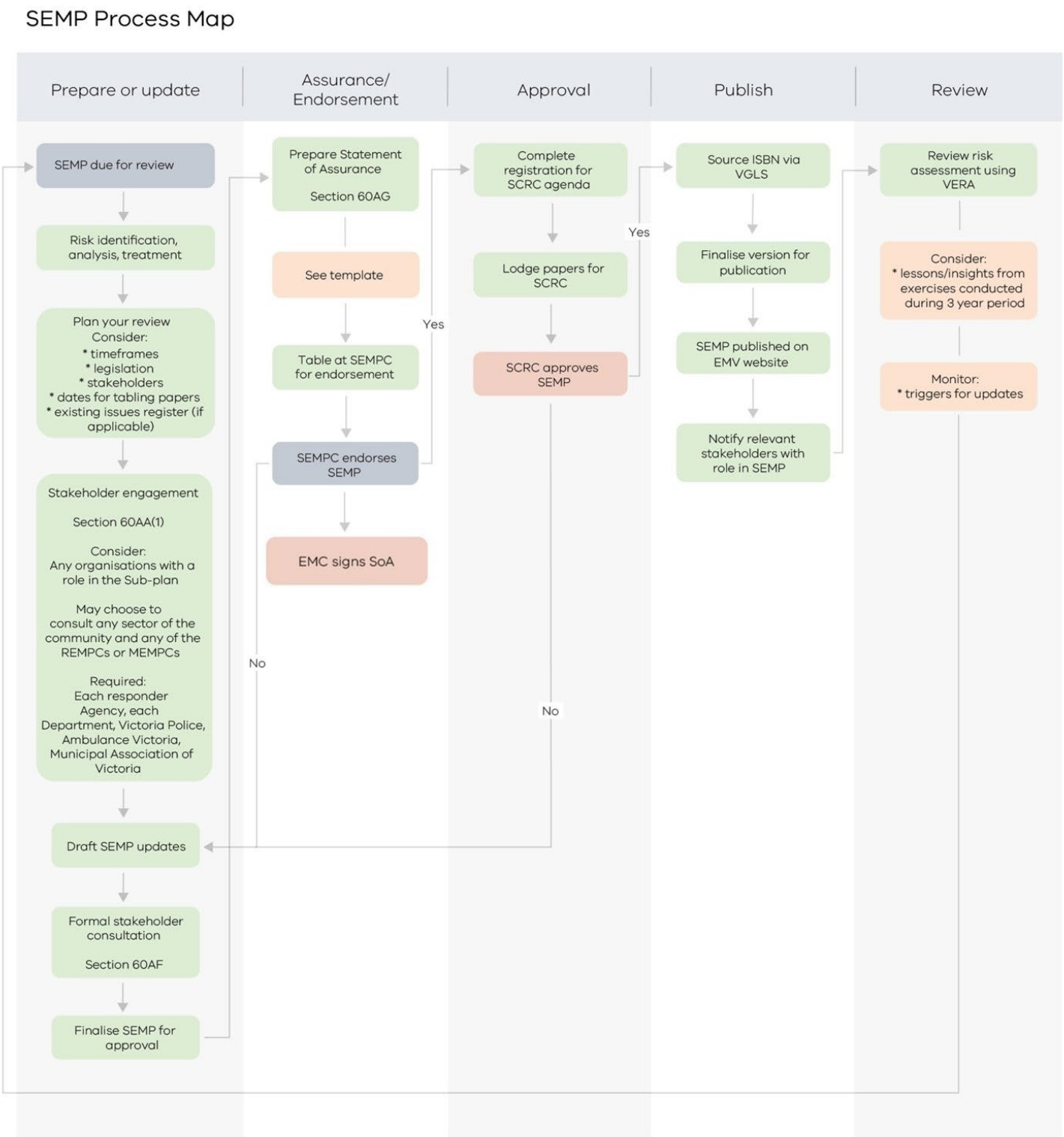


Figure 5

Process to prepare, assure and approve the SEMP

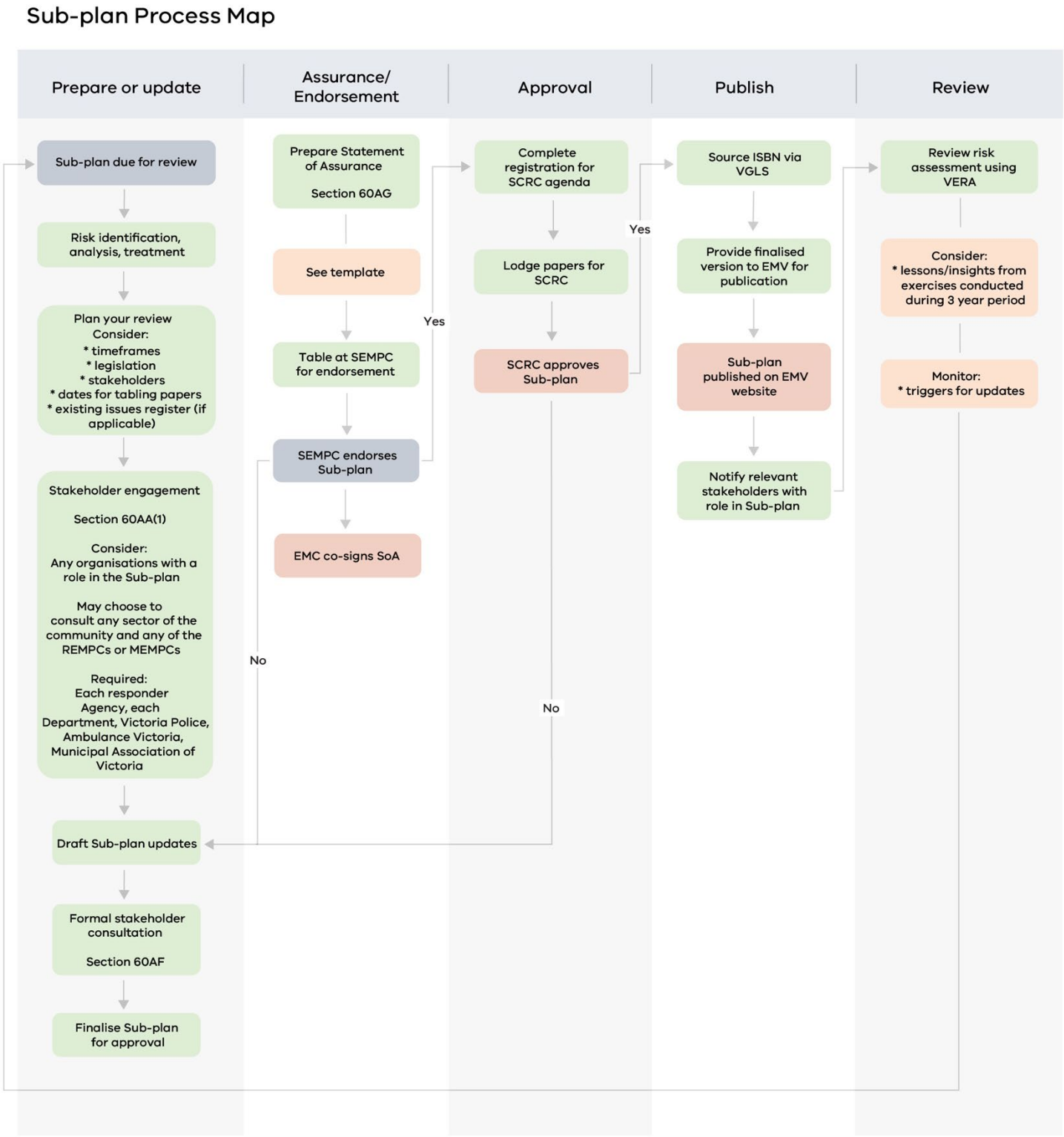


Figure 6

Process for preparing, assuring and approving a SEMP Sub-Plan

6.Regional emergency management plans

A REMP and any relevant REMP sub-plans are prepared by a REMPC and should add value to municipal level emergency management planning by considering the broader risk profile and integrating the various plans to ensure cohesion during complex or major emergencies. The REMP is not an aggregation of the MEMPs from within that region. REMPs should not replicate the state or municipal plans. Rather, they should:

- analyse risk specific to the region
- provide specific and/or additional information tailored to the region's context and regionally significant emergency risks
- establish common direction, strategy and targets for the region.

The REMP documents the considerations and the strategy to coordinate actions and resources where the consequences of the emergency escalate beyond the capability or capacity of an agency or municipal district. The REMP will support and guide activities related to major emergencies, particularly where a coordinated, multi-agency effort is required, and which may occur:

- in distinct locations
- across municipal boundaries within the region
- across regional boundaries.

To meet the regional needs, the REMP may have sub-plans or complementary plans appended or identified, to manage the consequences of locally significant specific emergencies within the district.

Where the SEMP, SEMP sub-plans, REMP, MEMP, MEMP sub-plans or relevant complementary plans (including operational plans) are not sufficient to address the local risks identified through the REMP risk assessment process, a REMP sub-plan may be required as determined by the Control Agency/ies or the REMPC with agreement from the Control Agency/ies. Hazard-specific REMP sub-plans should be prepared by the relevant Control Agency/ies on behalf of, and in collaboration with, the REMPC.

In general, the REMP will not take the form of traditional operational response plans or incident action plans. Instead, it will provide a clear set of arrangements to contextualise the SEMP, MEMP and the other plans within the region and address the requirements detailed in section 2.8 of these Guidelines. It is assumed the reader of the REMP understands that these plans add local context of emergency arrangements to the SEMP's state perspective. Where relevant and appropriate, the REMP may also detail arrangements for interoperability with neighbouring municipal districts particularly where the emergency is likely to cross municipal districts.

REMPs will seek to:

- provide a brief regional level overview and environmental scan that explains the hazard profile and key considerations for emergency management arrangements across the key areas of mitigation, response and recovery
- detail the arrangements for known and emerging risks and outline management strategies particularly where there are gaps in existing planning arrangements, capability or capacity
- detail the additional or different arrangements to manage the transition from response to recovery
- identify and plan for cross-agency/cross-boundary/cross-border training and exercising opportunities
- identify and plan for cross-agency/cross-boundary/cross-border community engagement and education opportunities
- identify opportunities to support and enhance the operation of MEMPs, where needed.

6.1 REMP consultation requirements (section 60AFA)

In addition to the consultation and collaboration that occurs within the REMPC during the development of the plan, the REMPC should consult with the municipal council of any municipal district within the Region, including Alpine Resorts Victoria in the case of the Hume region[3].

The EM Act 2013 requires broad consultation and engagement to ensure that all REMPs consider the MEMPs from within that region and incorporate the needs of communities. Effective consultation and engagement will ensure a shared understanding of the roles, responsibilities, people, resources and systems needed for managing emergencies. As such, the time required to engage effectively with relevant stakeholders will vary based on the topic and complexity of the plan.

The REMPC may choose to consult any sector of the community, agencies, groups, other REMPCs or MEMPCs it considers appropriate, including targeted consultation with community groups considered relevant or most at-risk by the REMPC. Consideration should be given to most at-risk groups, or sectors of the community that may be more

3 Alpine Resorts Victoria is considered to be a municipal council for the alpine resorts (being Mount Hotham, Falls Creek, Mount Buller, Mount Stirling, Mount Baw Baw and Lake Mountain) and the alpine resorts are taken to be a municipal district for the purpose of the EM Act 2013. All alpine resorts are designated in Hume region for the purposes of EM planning. This includes Mount Baw Baw Alpine Resort which is geographically located within Gippsland region and will remain in Gippsland for EM operations.

heavily impacted during an emergency, by hazard or risk assessment where relevant to ensure that the REMP is comprehensive and fit for purpose.

The REMPC should circulate the draft or revised REMP or REMP sub-plan to their respective portfolio agencies and key stakeholders to obtain feedback. Agencies with new or revised identified roles and responsibilities in the plan must be asked to acknowledge their commitment and capacity to meet the obligations as defined in the plan.

The REMPC may identify stakeholders who are unavailable to participate in consultation processes. Documenting engagement attempts and any feedback provided will support the REMPC to demonstrate compliance with the consultation requirements.

The REMPCs must allow enough time in the development of their REMP to ensure that:

- a thorough risk assessment is undertaken and review for previous lessons
- the interests, values and expectations of stakeholders, including community members are understood and considered, including:
    - community members
    - multi-cultural and multi-faith groups
    - Local First Peoples
    - relevant industry/critical infrastructure providers
    - ensuring participation is possible for all members of the community
    - others as appropriate
- the knowledge and expertise of agencies and technical experts is considered which may include emergency risk management studies, literature or case study reviews, e.g. Parks Victoria prepares emergency management plans for each of the parks and reserves it manages, which provide important content for REMPs
- there is broad ownership of the REMP, including a shared responsibility for its management, implementation and review.

6.2 Regional level Statement of Assurance (section 60AG)

The REMPC, as relevant preparer of the REMP under Part 6A of the EM Act 2013 must develop a Statement of Assurance and submit it to the EMC, along with the REMP or REMP sub-plan for approval, to confirm the REMP or REMP sub-plan complies with the requirements of the EM Act 2013 and specify the date when the plan was last reviewed. Complete and accurate records to support the Statement of Assurance should be kept and provided to the EMC, as relevant approver if required. For REMP sub-plans, the Statement of Assurance should be completed by the relevant Control Agency who prepared the plan on behalf of and in conjunction with the REMPC.

6.3 Approval of a REMP (section 60AH)

The EMC may, as soon as practicable, approve the REMP or REMP sub-plan if satisfied that it complies with the EM Act 2013. Where deemed necessary, the EMC as relevant approver may seek further information, for example evidence of the consultation that has occurred.

The EMC will manage conflicts of interest in approving the REMP or REMP sub-plan. In making its assessment the EMC should have regard to the resources and expertise available and recognise that planning will involve a process of continuous improvement over time.

The EMC is encouraged to advise the preparer where there are specific areas for improvement of the REMP or REMP sub-plan to facilitate continuous improvement throughout the next planning cycle.

The approval process is intended to ensure compliance with the EM Act 2013. Approving a REMP or REMP sub-plan does not mean the approver becomes accountable for the implementation or effectiveness of the plan.

6.4 Non-approval of the REMP

If a REMP, REMP sub-plan and/or Statement of Assurance does not comply with the EM Act 2013, the EMC as relevant approver may decline to approve the plan. If this occurs, the EMC should provide clear advice to the REMPC about what is required and support efforts to achieve compliance as soon as possible and within an agreed period of not more than 12 months.

Should the REMPC disagree with the decision of the EMC and efforts to resolve the dispute fail, either party may escalate the issue in accordance with the dispute resolution process outlined in section 10 of the EM Act 2013.

6.5 Publication of a REMP (section 60AI)

REMPs are required to be published on the EMV website as soon as practicable after approval, no longer than one month after approval. EMV will facilitate this and will advise the relevant REMPC once completed.

EMV will provide a copy of the published REMPs to the State Library of Victoria within 2 months of the date of publication, in accordance with the legal deposit requirements in section 49 of the Libraries Act 1988.

The following information is sensitive and may be excluded from the published version of a REMP:

- information about critical infrastructure, such as its location and criticality rating
- personal information, such as contact lists

- commercially sensitive information, such as intellectual property or trade secrets that may result in damage to a party's commercial interests
- information about illegal and high-risk activity, including those that may be subject to ongoing investigations or court processes (e.g. illegal chemical storages)
- information about the location of potential emergency relief centres.

On agency advice that information it has provided in the REMP is sensitive and should not be published, the REMPC will work with EMV to exclude this information from the published REMP. In addition to information provided by agencies, the REMPC should have regard to sensitivity of critical infrastructure information and information privacy principles in the Privacy and Data Protection Act 2014.

The REMPs do not come into effect until they are published. The relevant preparer will notify all agencies with a role under the REMP that is has been published and where it can be accessed. Notification should include the date on which the REMP was published and takes effect.

6.6 Review of REMPs (section 60AN)

A REMP and any relevant sub-plans must be reviewed at least every 3 years, or more frequently as required, to ensure it is current, integrated, coordinated and adequately addresses the emergency risks identified in the most recent risk assessment.

The REMP and REMP sub-plans should consider monitoring and evaluation arrangements, including who is responsible for monitoring and evaluation. A review may be required more often where the plan has been exercised or utilised and opportunities to improve the plan are identified. A review may be required when a new regionally significant risk is formally identified through Regional Emergency Risk Assessment (RERA). Monitoring and evaluation should occur through the life of the plan, with information shared with relevant stakeholders to promote continuous improvement and ensure a learning culture that supports sharing observations and insights.

All REMPCs should keep a schedule for reviewing their REMP and relevant sub-plans to ensure enough time is allowed to undertake the required consultation on the plan.

REMP (and REMP Sub-plan) Process Map

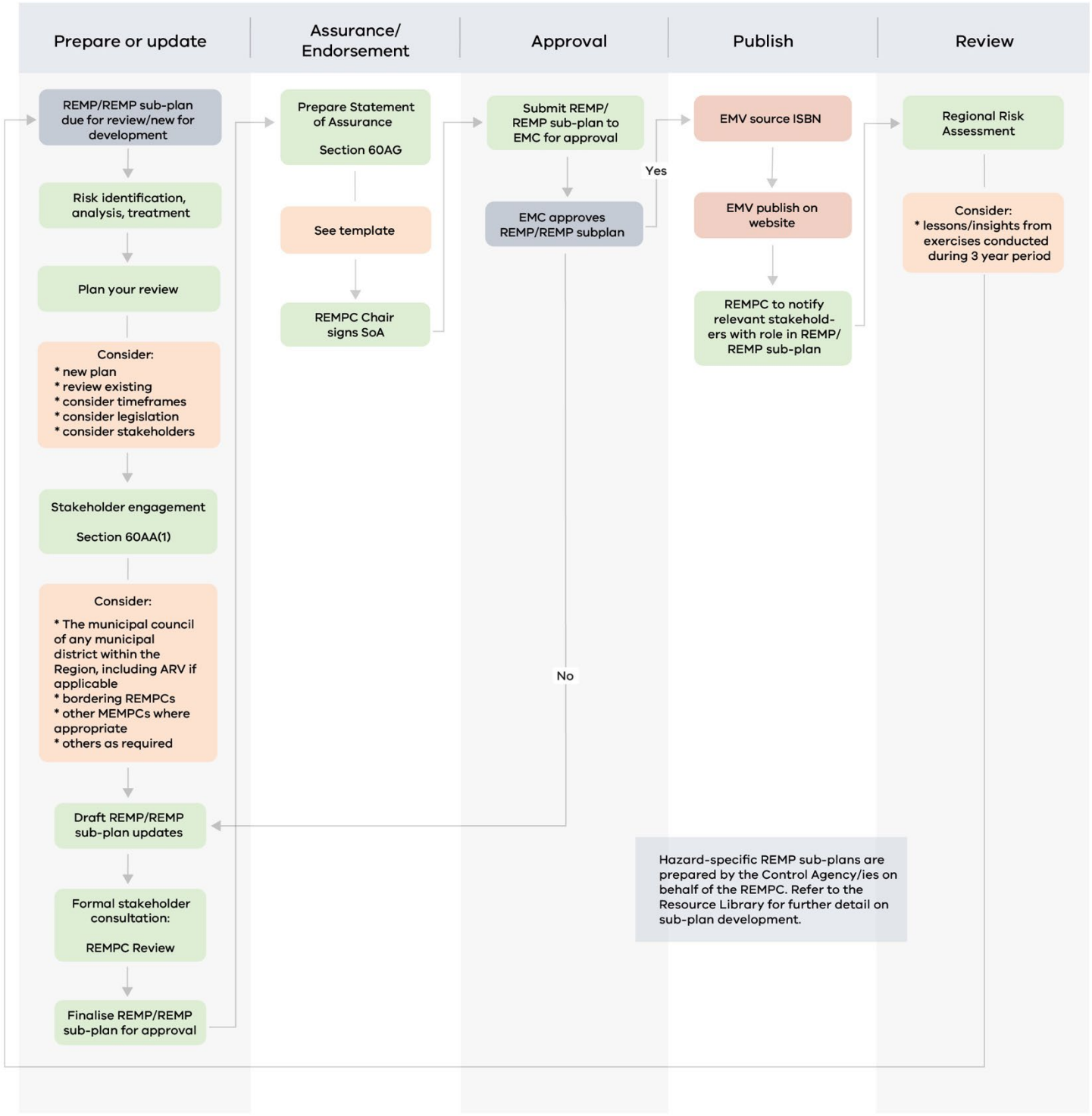


Figure 7

Process for preparing and approving REMPs

7. Municipal emergency management plans

The MEMP and any relevant MEMP sub-plans outline the mitigation, response (including relief) and recovery arrangements for managing emergencies which may occur within a municipal district.

The MEMP is likely to be more operational and tactical in nature than a REMP, as effective emergency response is best managed at the lowest possible level. Whilst the MEMP will contain similar considerations and arrangements as the SEMP and REMP, these will be specific to the municipal district.

Victorian local government is made up of 79 councils, Alpine Resorts Victoria are considered municipal councils for the purposes of emergency management planning.

MEMPs should not replicate the state or regional plans. Rather, they should provide specific and/or additional information tailored to the Council's context and emergency risks. It is assumed the reader of the MEMP understands that these plans add local context of emergency arrangements to the SEMP's state perspective.

To meet the operational needs, the MEMP may have a greater number of sub-plans and complementary plans appended or identified, to manage the consequences of locally significant specific emergencies within the district. Where the SEMP, SEMP sub-plans, REMP, REMP sub-plans, MEMPs or relevant complementary plans (including operational plans) are not sufficient to address the local risks identified through the MEMP risk assessment process, a MEMP sub-plan may be required as determined by the Control Agency/ies or the MEMPC with agreement from the Control Agency/ies. Hazard-specific MEMP sub-plans should be prepared by the relevant Control Agency/ies on behalf of, and in collaboration with, the MEMPC. The MEMP should not duplicate in force plans or arrangements. Instead, it will consider community consequences, clearly identify the coordination arrangements that will be applied when the sub-plan or complementary plan is implemented, and a multi-agency response is required.

MEMPCs, not the Council, are responsible for the preparation and consultation for the MEMP and sub-plans. All agencies required to be members of the MEMPC (as per section 59A of the EM Act 2013) need to contribute to the ongoing development of these plans. MEMPC members must collaborate with each other in preparing their MEMPs to leverage experience and resources where similar environmental conditions or hazards exist, or where to do so will create efficiencies. This may include two or more MEMPCs working together on shared issues and risks to increase planning efficiencies and ease the burden for those who are represented on more than one committee and may include incorporating or referring to documents in the MEMP that have been developed in collaboration with other MEMPCs. Each MEMPC must still develop and publish its own MEMP in accordance with the EM Act 2013 which applies locally specific context.

7.1 MEMP consultation requirements (section 60AFB)

In addition to the consultation and collaboration that occurs within the MEMPC, extensive consultation with stakeholders at the local tier is extremely important as the MEMPCs have a direct interface with the communities they represent. Broad consultation and engagement with key stakeholders will make a notable difference when an emergency plan is required to be implemented.

To meet these consultation obligations, the MEMPC should actively engage with any sector of the community and any Department or agency that they deem appropriate including targeted consultation with community groups considered relevant or most at-risk by the MEMPC. Consideration should be given to targeted consultation with most at-risk groups, or sectors of the community that may be more heavily impacted during an emergency, by hazard or risk assessment where relevant.

MEMPCs should also consider any relevant emergency management plan developed by the community, or a sector of the community, which has application in the municipal district or a part thereof.

The EM Act 2013 requires broad consultation and engagement to ensure that all MEMPs consider and incorporate the needs of communities. As such, the time required to engage effectively with relevant stakeholders will vary based on the topic and complexity of the plan.

Effective consultation and engagement will ensure a shared understanding of the roles, responsibilities, people, resources and systems needed for managing emergencies and supports communities and organisations to work together to plan for emergencies by understanding:

- the people who live, work in and visit the community
- strengths such assets, values and support systems including what the community describe as important from a range of different perspectives
- local and emerging medium to long term priorities including the likely emergency scenarios and real events which may affect the community
- what is already in place, what is considered suitable and what can be improved
- the goals and actions which may be completed in partnership or separately as required
- different ways of learning and working together which can be adapted and used before, during and after different times of need.

The MEMPCs must allow enough time in the development of their MEMP to ensure that:

- the interests, values, and expectations of stakeholders, including community members are understood and considered, including:
    - community members
    - multi-cultural and multi-faith groups
    - local First Peoples
    - groups representing people with disability
    - relevant industry/critical infrastructure providers
    - ensuring participation is possible for all members of the community
    - others as appropriate
- the knowledge and expertise of agencies and technical experts is considered which may include emergency risk management studies, literature or case study reviews
- there is broad ownership of the MEMP, including a shared responsibility for its management, implementation and review.

Agencies with new or revised identified roles and responsibilities in the plan need to be consulted to acknowledge and confirm capacity to meet the obligations as defined in the plan.

All communities are different, so there is no one-size-fits-all approach to consultation and engagement. Depending on the community's unique characteristics, community engagement might involve informal or formal approaches.

Informal approaches can be a fast and effective way to identify community needs and priorities. The MEMPC can work in partnership with these community members to ensure their needs and priorities are captured and considered through its planning processes.

Formal approaches can build on existing community structures or networks to aid engagement. They can support existing groups within the community and engage them to support planning efforts. Examples of this kind of approach include an existing community group taking on the role of MEMPC representative or holding facilitated workshops to bring different views together. Structure, membership and involvement can be tailored to the needs of the community.

The MEMPC may identify stakeholders who are unavailable to participate in consultation processes. Documenting engagement attempts and any feedback provided will support the MEMPC to demonstrate compliance with the consultation requirements.

7.2 Municipal level Statement of Assurance (section 60AG)

The MEMPC, as the relevant preparer of a MEMP must develop a Statement of Assurance that confirms the MEMP or MEMP sub-plan complies with the requirements of the EM Act 2013 and specifies the date when the MEMP or MEMP sub-plan was last reviewed. For MEMP sub-plans, the Statement of Assurance should be completed by the relevant Control Agency who prepared the plan on behalf of and in conjunction with the MEMPC.

Complete and accurate records to support the Statement of Assurance should be kept and provided to the REMPC, as the relevant approver if required. The Statement of Assurance assists the REMPC, as the relevant approver to decide whether to approve the MEMP.

7.3 Approval of a MEMP (section 60AH)

The relevant MEMPC, as the preparer, must submit the MEMP, MEMP sub-plan and Statement of Assurance to the relevant REMPC for approval.

The REMPC may, as soon as practicable, approve the MEMP or MEMP sub-plan if satisfied that it complies with the EM Act 2013. Where deemed necessary, the REMPC may seek further information, for example evidence of the consultation that has occurred.

The REMPC, as the relevant approver will manage conflicts of interest in approving the MEMP or MEMP sub-plan.

Agencies that are represented on both a MEMPC and REMPC are not required to declare a conflict of interest in the REMPC's approval of the respective municipal district's MEMP or MEMP sub-plan.

In making its assessment the REMPC, as the relevant approver should have regard to the resources and expertise available and recognise that planning will involve a process of continuous improvement over time. The REMPC is encouraged to advise the preparer where there are specific areas for improvement of the MEMP or MEMP sub-plan to facilitate continuous improvement throughout the next planning cycle.

The approval process is intended to ensure compliance with the requirements of the EM Act 2013. Approving a MEMP or MEMP sub-plan does not mean the approver becomes accountable for the implementation or effectiveness of the plan.

7.4 Non-approval of the MEMP

If a MEMP, MEMP sub-plan and/or Statement of Assurance does not comply with the EM Act 2013, the REMPC, as the relevant approver may decline to approve the plan. If this occurs, the approving REMPC should provide clear advice to the MEMPC about what is required and support efforts to achieve compliance as soon as possible and within an agreed period of not more than 12 months.

Should the preparer disagree with the decision of the approver and efforts to resolve the dispute fail, either party may escalate the issue in accordance with the dispute resolution process.

7.5 Publication of a MEMP (section 60AI)

The REMPC must provide the relevant council with a copy of the approved MEMP in a format suitable for publication (which is the approved MEMP with any information identified as sensitive or restricted removed for the purpose of publication). The council is then required to publish the approved MEMP on their website on behalf of the MEMPC within an agreed period of not more than one month and will advise the MEMPC when this has been completed.

The MEMPC will also provide a copy of the published MEMP to the State Library of Victoria within 2 months of the date of publication.

The following information is sensitive and may be excluded from the published version of a MEMP:

- information about critical infrastructure, such as its location and criticality rating
- personal information, such as contact lists
- commercially sensitive information, such as intellectual property or trade secrets that may result in damage to a party's commercial interests
- information about illegal and high-risk activity, including those that may be subject to ongoing investigations or court processes (e.g. illegal chemical storages)
- information about the location of potential emergency relief centres.

On agency advice that information provided in the MEMP is sensitive and should not be published, the relevant preparer will exclude this information from the published emergency management plan. In addition to information provided by agencies, the relevant MEMPC should have regard to sensitivity of critical infrastructure information and information privacy principles in the Privacy and Data Protection Act 2014.

MEMPs do not come into effect until they are published. The relevant MEMPC will notify all agencies with a role under the emergency management plan that is has been published and where it can be accessed. Notification should include the date on which the MEMP was published and takes effect.

7.6 Review of MEMPs (section 60AN)

A MEMP and any relevant sub-plans must be reviewed at least every 3 years, or more frequently as required, to ensure it is current, integrated, coordinated and reflects an up-to-date risk profile.

The MEMP and MEMP sub-plans should consider monitoring and evaluation arrangements, including who is responsible for monitoring and evaluation. A review may be required more often where the plan has been exercised or implemented and opportunities to improve the plan are identified. Monitoring and evaluation should occur through the life of the plan, with information disseminated to stakeholders where relevant to promote continuous improvement and ensure a learning culture that supports sharing observations and insights.

REMPCs should maintain a schedule of the approval cycle of the relevant MEMPs within their region to ensure resources are available for review, assurance and approval in the required timeframes.



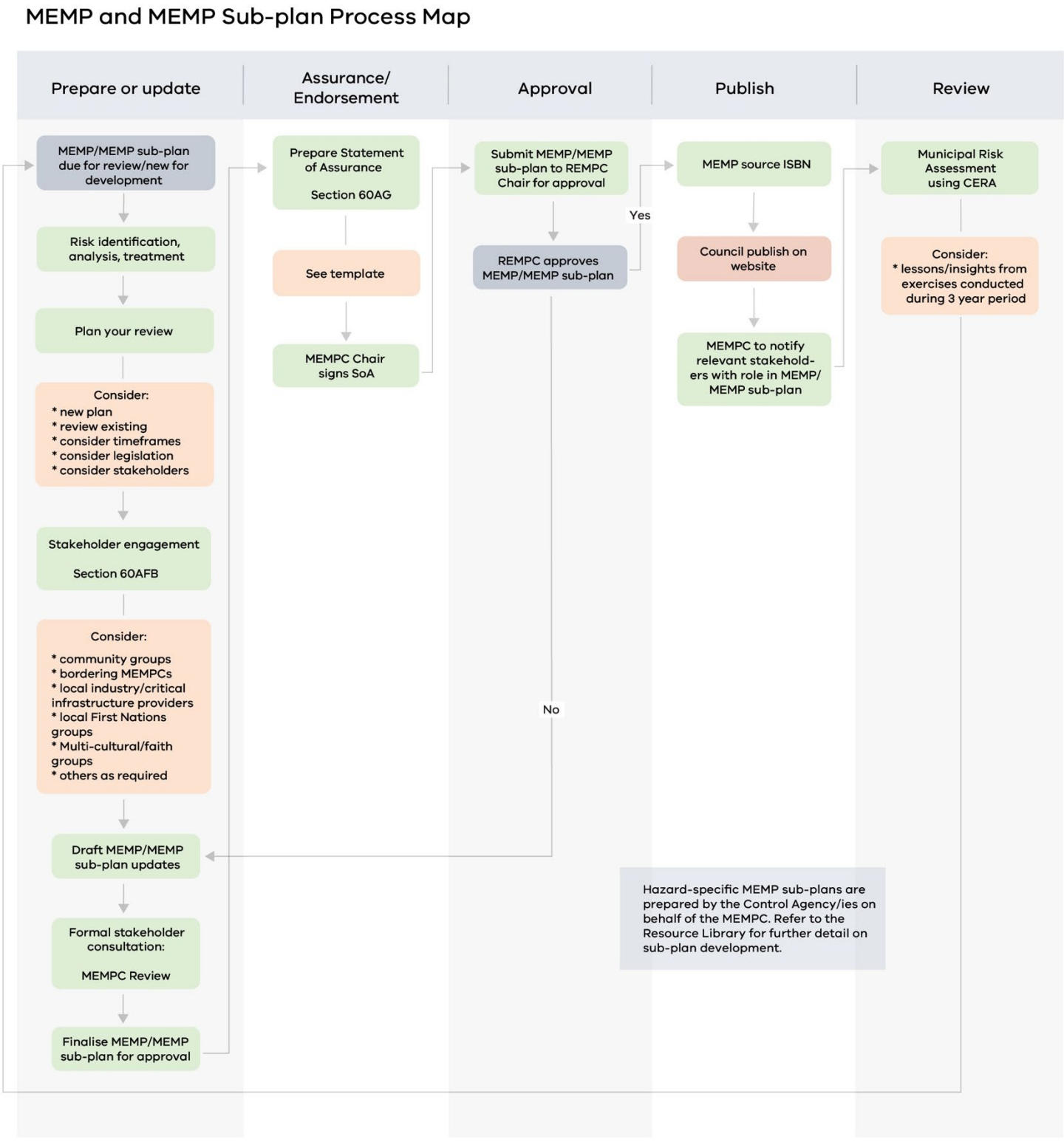


Figure 8

Process for preparing, assuring and approving a MEMP

8. Urgent updates of emergency management plans (section 60AM)

In some circumstances, it may be necessary for the EMC or a planning committee to update an emergency management plan without complying with the consultation and approval requirements of the EM Act 2013. For this provision to apply, the following conditions must exist:

- there is significant risk to life or property
- it's urgently required
- consultation, assurance and approval as required under sections 60AF, 60AG or 60AH of the EM Act 2013 (as the case may be), is not practical.

The urgent update comes into effect when published under section 60AI(1) of the EM Act 2013 and remains in force for a maximum period of 3 months, unless revoked sooner by the approver.

The relevant preparer must ensure affected agencies and the relevant approver are made aware of any urgent updates as soon as possible.

If the relevant approver intends to revoke the urgent update, the preparer should be consulted. Considerations for revoking the urgent update include:

- life or property are no longer endangered
- the situation is no longer considered urgent
- the update is otherwise no longer appropriate.

If the urgent update is revoked, or if the emergency management plan is not updated within 3 months using the usual process, the original emergency management plan is reinstated and re-published. All affected agencies must be advised by the preparer when the original emergency management plan is back in force.

9.Resolving disputes

All those involved in emergency management planning should work collaboratively to achieve effective outcomes through consensus. Nonetheless, disputes may arise about matters including but not limited to:

- an agency's role or responsibility under the emergency management plan
- an agency's capacity to undertake planning tasks
- the process, content and approval of the plan
- the decision of a relevant approver
- the assurance and review of the emergency management plan
- timeliness, as soon as practical, preferably within 6 to 9 months of raising, ensuring resolution within a period not exceeding 12 months.

Each planning level remains accountable for its own planning. Where a dispute arises, the parties should seek to resolve the differences as soon as possible in a constructive, respectful and transparent way.

Escalation of disputes to the next planning level, should only occur as a last resort, and where an issue is significant. For example, disputes regarding the SEMP that cannot be resolved may be referred to the SCRC for consideration and matters related to a REMP or the non-approval of a MEMP may be escalated to the EMC.

Any formal escalation should be done via formal correspondence and include details of the issue and the steps taken to resolve it.



10. Appendix A – Acronyms

Acronym	Description
ARV	Alpine Resorts Victoria
CEMP	Community Emergency Management Plan
CERA	Community Emergency Risk Assessment
EM Act 2013	Emergency Management Act 2013
EMC	Emergency Management Commissioner
EMV	Emergency Management Victoria
MEMP	Municipal Emergency Management Plan
MEMPC	Municipal Emergency Management Planning Committee
REMP	Regional Emergency Management Plan
REMPC	Regional Emergency Management Planning Committee
SCRC	State Crisis and Resilience Council
SEMP	State Emergency Management Plan
VERA	Victorian Emergency Risk Assessment

